

(Name of court)

**Form 36A: Certificate
of Clerk (Divorce)**

at

Court office address

Applicant's last name

Respondent's last name

If the appropriate box on the left cannot be checked, check the box on the right margin and describe the deficiency by that box. If the divorce application was filed electronically, write "N/A" in the blank spaces relating to the Continuing Record.

The clerk of the court certifies as follows:

Check if applicable and complete the rest of the certificate
as if the divorce had been claimed by the applicant.

Divorce claimed only by the respondent.

Deficiency

1. PRELIMINARY

- (a) Jurisdiction – Application filed in correct municipality 1(a)
 No answer filed
 Answer was withdrawn – Continuing record tab/page number
 Order dated , under subrule 12(6), splitting divorce
 from rest of the case – continuing record tab/page number
 Answer struck out by order dated 1(b)
 - Continuing record tab/page number
 Joint application – no respondent
- (b) Clearance certificate from Central Divorce Registry

2. PROOF OF SERVICE

Affidavit of service
 Person's lawyer accepted service
 Joint application – no service necessary

3. METHOD OF SERVICE

Left copy with person to be served
 Left copy with person's lawyer
 Mailed copy to person and received acknowledgement signed by person
 Left copy at person's residence with adult resident and mailed another copy
 Signed acknowledgement of service filed
 Other (specify.)

Service took place in (province or country)

Service was carried out on (date)

4. GROUNDS FOR DIVORCE

Separation since (date) , affidavit
 sworn more than one year after separation
 Adultery
 Cruelty

5. ONTARIO RESIDENCE

Application should indicate that at least one spouse must have been Ontario resident for at least a year.

Applicant resident in Ontario since (date)

Respondent resident in Ontario since (date)

6. CLAIMS

Only claim for divorce
 Claim for child support [details in part 9 below]
 Claim for decision-making responsibility/parenting time – details in application
 Claim for spousal support – details in application
 Claim for property – details in application
 Claim to include provisions of consent, agreement or previous court order – details in application
 Costs

Deficiency

7

7. PROOF OF MARRIAGE

Marriage took place _____ in Canada _____ outside Canada

Marriage certificate or registration of marriage filed – details agree with those in application

- Continuing record tab/page number _____

No certificate – details of marriage set out in affidavit – Continuing record

tab/page number _____

Previous divorce or death certificate filed – Continuing record tab/page number _____

8. AFFIDAVITS

8

Applicant's affidavit – Continuing record tab/page number _____

Respondent's affidavit – Continuing record tab/page number _____

Affidavit of (name) _____

- Continuing record tab/page number _____

Affidavit complies with Form 36 and is properly completed – Continuing record tab/page number _____

9. CHILDREN

9

No children of the marriage _____ There are children of the marriage _____

Child support guidelines information supplied – Continuing record

tab/page number _____

Payor's income _____ table amount _____

recipient's income [REQUIRED for special expenses (add-ons), split and shared parenting time, payor is stepparent, child over 18, payor's income more than \$150,000, claim of undue hardship]

details of special expenses (add-ons) _____

agreement/consent with explanation for claim less than table amount _____

10. DRAFT ORDER

10

The following material has been filed:

Draft Order - no support claimed.

3 copies – filed in paper format _____ Filed electronically _____

Draft order and draft support deduction order – support claimed

4 copies of draft order + 2 copies of draft support deduction order – filed in paper format

Filed electronically _____

Service of order on parties

Stamped envelope for each party – application filed in paper format

Email address of at least one party – application filed electronically

Address for service of order on respondent is same as

on application _____ on documents filed by respondent _____ in applicant's affidavit _____

Draft order in same terms as application

Draft order in same terms as consent, minutes of settlement, or agreement filed

- Continuing record tab/page number _____

Request for early effective date for divorce; agreements and undertakings filed not to appeal

- Continuing record tab/page number _____

11. NOTICE TO APPLICANT

11

Applicant notified of deficiencies but requests to submit papers to judge despite them.

Date of signature_____
Signature of clerk of the court